

Court No. - 37

Case :- WRIT - C No. - 55399 of 2013

Petitioner :- Rajan Singh Yadav

Respondent :- Dhakinanchal Electricity Distribution Corp.Ltd. & 10 Others

Counsel for Petitioner :- Sunil Kumar

Counsel for Respondent :- Baleshwar Chaturvedi

Hon'ble Ashok Bhushan,J.

Hon'ble Vipin Sinha,J.

Heard learned counsel for the petitioner and Sri Baleshwar Chaturvedi, learned counsel appearing for respondent no. 2.

No notice is being issued to the private respondent nos. 3 to 11 in view of the order which is being passed.

Petitioner has prayed for quashing the notice dated 13.09.2013 issued to the petitioner proposing assessment on the basis of an inspection dated 12.09.2013.

The provisional assessment notice itself indicates that petitioner may file his objection within 15 days.

Learned counsel for the petitioner submits that notice has not been issued in accordance with the provisions of U.P. Electricity Supply Code, 2005.

We are of the view that when the petitioner has already been given an opportunity to file his objection, it is open for the petitioner to file his objection to the provisional assessment notice and take all objections in his reply.

Learned counsel for the petitioner further submits that his electricity supply has been disconnected on 12.09.2013.

We provide that in event petitioner deposits 1/3rd amount of the assessment notice dated 13.09.2013, the petitioner's electricity supply shall be connected which shall be subject to the final assessment order to be passed after consider the objection of the petitioner. Petitioner may also file his objection within 15 days along with receipt of the deposit of 1/3rd amount. The respondents shall decide the objection and finalize the assessment and thereafter take appropriate action in accordance with law.

The writ petition is disposed of.

Order Date :- 7.10.2013

Sandeep